

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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AARON MCCRAY and VALERIE CLARK,

Index No.:
Date filed:

Plaintiffs,

-against-

SUMMONS

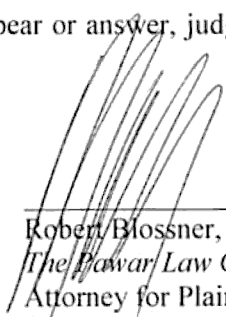
**THE CITY OF NEW YORK
JOHN AND JANES DOES 1-3**

Plaintiff designates Bronx
County as the place of trial
Basis of Venue: Place of Occurrence
Plaintiff resides at:
544 W. 157th Street
New York, NY 10032

Defendants.
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YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff (s) Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is completed if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 1, 2019



Robert Blossner, Esq.
The Law Group, PC
Attorney for Plaintiff
Office & P.O. Address:
20 Vesey Street, Suite 1210
New York, NY 10007
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Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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AARON MCCRAY and VALERIE CLARK

Index No.:

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Plaintiffs,

-against-

COMPLAINT

Jury Trial Demand

THE CITY OF NEW YORK,
JOHN AND JANE DOES 1-3,

Venue: BRONX CT

Defendants.
-----X

The plaintiff, *AARON MCCRAY AND VALERIE CLARK* by their attorney, **ROBERT BLOSSNER, ESQ.**, complaining of the defendants respectfully alleges, upon information and belief, as follows:

1. Defendants *JOHN DOES 1-3* are/were NYPD officers at the time of the incident assigned to the PSA8 precinct.
2. On October 5, 2016, plaintiff *AARON MCCRAY AND VALERIE CLARK* was arrested and seized *JOHN and JANE DOES 1-3*. Plaintiff *AARON MCCRAY AND VALERIE CLARK*, live in 544 West 157th street in the Bronx, New York.
3. *CLARK* is *MCCRAY's* mother.
4. *MCCRAY* lives with his mother, grandmother, a brother and his sister.
5. On October 5, 2016, around 10 a.m., *MCCRAY* went to a grocery store to buy some groceries for his family.
6. The grocery store was down the block from Plaintiffs' residence.

7. After plaintiff *MCCRAY* purchased the groceries he proceeded to walk back to his residence.

8. As *MCCRAY* walked back, he was approached by an individual who turned out to be one of the *JOHN DOE* defendants. This individual asked plaintiff *MCCRAY* “you got the money,?” to which *MCCRAY* responded “what are you talking about?”, the *JOHN DOE* defendant then stated “ I am looking for 3 crack bags” to which *MCCRAY* responded “Get the F*** out of here.”

9. As this interaction was taking place, *MCCRAY* saw his mother *CLARK* in front of their residence.

10. At that time, *JOHN DOE* and 2 other individual defendants grabbed plaintiff and threw him up against the wall.

11. Plaintiff *MCCRAY* stated that he had done nothing wrong and called for his mother plaintiff *CLARK*.

12. Defendants pointed their guns at *CLARK* and held plaintiff under the gun and stated “that’s not your fucking mother.”

13. *MCCRAY* was then arrested even though he had committed no crime and dragged to the “125th street hub” where he was strip-searched.

14. *MCCRAY* was held in jail for more than 3 days before the Court released him ROR.

15. *MCCRAY* had to appear in court more than four times before the false charges against him were dismissed.

16. Defendant *CITY OF NEW YORK* (“*CITY*”) is a municipal corporation who

oversees the NYPD.

AS AND FOR A FIRST CAUSE OF ACTION

(False Arrest/Seizure under 42 U.S.C. 1983)

17. Plaintiffs repeat and reallege all of the foregoing paragraphs as if fully set forth herein.

18. Defendants *JOHN and JANE DOES 1-3* arrested plaintiff *MCCRAY* on false charges. They strip-searched him and held him for 3 days without probable cause. Defendants *JOHN and JANE DOES 1-3* pointed their gun at *CLARK* and threatened to shoot her and seized her under the threat of deadly force even though *CLARK* had done nothing wrong.

19. As a result of defendants' conduct plaintiffs suffered constitutional injuries.

AS AND FOR A SECOND CAUSE OF ACTION

(Malicious Prosecution/Denial of Fair Trial under 42 U.S.C. 1983)

20. Plaintiffs repeat and reallege all of the foregoing paragraphs as if fully set forth herein.

21. Defendants *JOHN and JANE DOES 1-3* falsified police documents and initiated criminal proceedings against the plaintiff *MCCRAY*.

22. Defendants *JOHN and JANE DOES 1-3* knew that by forwarding the police documents to the DA's office, plaintiff would be prosecuted. They acted with malice because they did not have probable cause to even arrest plaintiff. They also falsified documents claiming plaintiff had sold drugs. All the criminal charges against the plaintiff were dismissed in his favor. *MCCRAY* had to appear before the criminal court on at least 4 times before the false charges were dismissed.

23. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A THIRD CAUSE OF ACTION

(Municipal Liability against the CITY)

24. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

25. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

26. The aforementioned customs, usages, and practices of the *CITY* included, but were not limited to, arresting, assaulting individuals suspected of crimes without due process. In addition, the *CITY* engaged in a custom or practice of inadequate screening, hiring, retaining, training, disciplining and supervising its employees, which was the moving force behind the violation of Plaintiff's rights as described herein.

27. In addition, the Defendant's superior officers whose duty it was to review and screen all arrests for propriety upon presentation by the officer seeking to make an arrest routinely ratified such arrests without questioning the facts underlying same.

28. Furthermore, the individual defendants have a practice and custom of ignoring the mandates of the patrol guide, which requires them to prepare several forms before, and after an arrest is made. As a result of the failure of the *CITY* to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, Defendants have tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein

29. Furthermore, police officers from the NYPD retain old photographs of arrestees and use them illegally to show victims of crime, in order to close out cases even when the photographs do not represent the actual perpetrator of the crime. These photographs and other documents are supposed to be sealed pursuant to Section 160.50 of the NYS penal Code. Yet, on numerous occasions, the NYPD officers retain them and use them for unlawful purposes. The NYPD has not mechanism set to train officers on how to destroy files, photographs and criminal court and arrest paperwork after a case has been dismissed and sealed. This lack of inaction is a *defacto* policy that led to violation of plaintiff's constitutional rights.

WHEREFORE, Plaintiffs demand judgment and pray for the following relief, jointly and severally, against the defendants:

(A) Full and fair compensatory damages in an amount Five Hundred Thousand Dollars for each and every cause of action for each plaintiff against defendants (individually or collectively) or as determined by a jury:

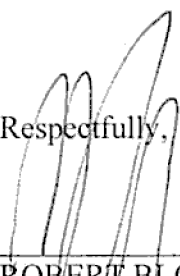
(B) Punitive damages in an amount to be determined by a jury:

(C) Reasonable attorney's fees and the costs, expenses and disbursements of the action;
and

(D) Such other and further relief as appears just and proper.

Dated: New York, New York
May 1, 2019

Respectfully,



ROBERT BLOSSNER, ESQ.
Pawar Law Group, P.C.
Attorneys for Plaintiffs
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